//By Regd Post with ACK/Due//

GOVERNMENT OF TELANGANA
IRRIGATION & CAD DEPARTMENT

From
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To
The Director, NOC Committee,
HMDA, SwarnaJayanthi Complex,
Ameerpet, Hyderabad

Letter No. SE/IC/SRD/DSE/DEE 1/TS4/ 2420 Date:29-10-2024

Sir,

Sub: I&CADD - Sangareddy District – Patancheru(M), Pashamylaram(V) -- Issue of No Objection Certificate for the land in Sy.No.100/P & 101/P to a total extent of Ac.7-13Gts situated at Pashamylaram(V) – Patancheru(M) – Sangareddy District - Clarification issued by the Chief Engineer, Irrigation, Sangareddy - Reg.

Ref:
1. Application of M/s.Shalimar Roller Flour Mill R/o Hyderabad to the Executive Engineer, Irrigation Division No.1, Sangareddy, Dt: 23.07.2024.
2. Joint Inspection Report of the Irrigation and Revenue officials Dt: 24.08.2024.
3. CE/MI(KB)/HYD Memo No.DCE-I/OT1/AEE-4/NOC's/General Instructions Dt:30.09.2019.
4. EE/ID.No.1/SRD, Lr.No.EE/ID.No.1/SRD/DEE(T)/ AEE2/714,Dt:14.10.2024
5. T.O.Lr. No.SE/IC/SRD/DSE/DEE-1/TS4/844, Dt:22.10.2024
6. CE/IRR/SRD Memo No.CE(I)/SRD/DCE/DEE1/AEE1/NOC/1160, Dt: 24.10.2024
7. T.O.Lr. No.SE/IC/SRD/DSE/DEE-1/TS4/2400, Dt:28.10.2024.
8. Undertaking letter from M/s Shalimar Roller Flour Mill, Dt:29-10-2024.

It is to submit that,vide reference 1st cited, the applicant **M/s Shalimar Roller Flour Mill** has submitted an application to the Executive Engineer, Irrigation Division No.1, Sangareddywith a request to issue No Objection Certificate in respect of the lands in Sy.No.100/P & 101/P to a total extent of Ac.7-13Gts situated at Pashamylaram(V), Patancheru(M), Sangareddy District.

In this regard, vide reference 4th cited, the Executive Engineer, Irrigation Division No.1, Sangareddy reported that a team comprising of Irrigation and Revenue officials have conducted joint inspection on Dt:24.08.2024 in respect of the subject lands in Sy.No.100/P & 101/P to a total extent of Ac.07-13Gts situated at Pashamylaram (V), Patancheru (M), Sangareddy District and reported that the the Mandal Surveyor Patancheru has demarcated the subject land boundaries in the Sy.No.100/P & 101/P admeasuring extent Ac: 07-13 Gts situated at Pashamylaram(V) of Patancheru (M) and upon demarcation, it is observed that a local stream is passing along the Western boundary and Northern boundary of the applicant land in Sy.No.100/P. Since, the Nala width is about more than 10.00 mtrs and a buffer zone of 9.00 mtrs is applicable on one side as per the conditions stipulated under G.O.ms.No.168 of MA & UD dt:07.04.2012 and the same is marked in the location sketch map

and the applicant land in Sy.No.101/P is free from the Nala MFL and its buffer Zone 9.0 mtrs. Further reported that, on examining the Toposheet and village map, above said nala indicated taking off from the Kunta traversing through the applicant's land in Sy.No.100/P from south to East direction affecting the applicant land and leading to the Peddacheruvu tank existing on downstream of Isnapur(V). Hence, deductions are made in the applicants land as per G.O.Ms.No.168 of MA & UD Dt: 07.04.2012 and the same is marked in the location Sketch map. The Mandal Surveyor, PatanchervuMandal captured the Global coordinates of the site under the technical guidance of Irrigation Department and prepared the location sketch map and duly superimposing in village map and marking all the details, there are no claims and objections received from adjacent Pattedars regarding the subject lands.

In this connection, the Executive Engineer, Irrigation Division No.1, Sangareddy has submitted the details of the applicant's land bearing Sy.No.100/P & 101/P to a total extent of Ac.07-13Gts situated at Pashamylaram (V), Patancheru (M), as per the location sketch map prepared by the revenue authorities and the same are as tabulated below.

Table-A

Sl.No	Sy. No	Total Extent (Ac-Gts)	Extent of the applicant Land (Ac-Gts)	Applicant land affected under theNALA/Stream		Proposed Balance Land area (Ac-Gts)
				MFL (Ac-Gts)	Buffer Zone (9m) (Ac-Gts)	
1	100/P	13-33	04-16	Nil	00-21	03-35
2	101/P	07-09	02-37	Nil	Nil	02-37
Total			**07-13**	**Nil**	**00-21**	**06-32**

The Executive Engineer, Irrigation Division No.1, Sangareddyhas inspected the site and up on satisfaction submitted to Superintednding Engineer vide reference 4th cited, After receiving the proposal, the Superintending Engineer, Irrigation Circle, Sangareddy has also inspected the site along with the Executive Engineer, Irrigation Division No.1, Sangareddy, Deputy Executive Engineer and concerned Assistant Executive Engineer and submitted to CE(I),SRD vide ref 5th cited.

The Chief Engineer, Irrigation, Sangareddy has issued clarification to the applicant balance land Ac 06-32Gts in Sy.No.100/P & 101/P situated at Pashamylaram (V), Patancheru (M)Sangareddy District as shown in the table above subject to the following terms and conditions videreference 6th cited.

1) There should not be any kind of construction in FTL /MFL/ Bund and buffer zone area which is clearly demarcated in the revenue sketch map submitted by the Mandal surveyor and Tahasildar, Patancheru (M),Sangareddy District.

2) The natural flow in the catchment area through the applicant land in Sy.No.100/P & 101/P situated at Pashamylaram (V), Patancheru (M), Sangareddy District should not be obstructed or diverted or utilized for any purpose and open drain should be constructed to required size with sufficient vents are to be provided to allow the rain water enter freely into the tank/vagu/Nala.

3) There should not be any kind of dumping (or) throwing of Garbage (or) any kind of material/waste etc into the tank/Nala/Channel.

4) Any kind of sewerage (or) any kind of effluents should not be allowed to let into the tank/Vagu/ Nala/Channel.

5) No construction is allowed in FTL/MFL area and Buffer zone areas. Further Buffer zone area has to be left for Greenery only.

6) The department officials or Government representatives will have the right to inspect the free natural flow through the applicant land in Sy.No.104 situated at Pashamylaram (V), Patancheru (M),Sangareddy District and there should not be any restrictions or obstructions for their entry for inspection.

7) Any objection by the higher authorities of Irrigation Department / or any other Government department conversion of land to Residential /commercial use zone of applicants land in Sy.No.100/P & 101/Psituated at Pashamylaram (V), Patancheru (M), Sangareddy District is liable for cancellation of permission without any prior notice and no compensation or reimbursement of cost maintenance due to above permission will be paid by the Government department for any reasons what so ever.

8) The Construction/layout in applicant land in Sy.No.100/P & 101/Psituated at Pashamylaram (V), Patancheru (M), Sangareddy District should be carried as per the terms & conditions stipulated in GO Ms No. 168 of MA & UD Dept, Dt: 07.04.2012 and G.O Ms.No.7 Dt: 05.01.2016 of Municipal & Urban Development Department, and other related G.Os issued from time to time and also as per the Chief Engineer, I & CAD, Hyderabad guidelines, circulars issued time to time and that should be followed scrupulously without fail.

9) The concerned Deputy Executive Engineer and Assistant Executive Engineer will be held responsible if any constructions are noticed later stage in the FTL/MFL/Buffer zone.

10) The Executive Engineer shall ensure the total extent of applicant land and the extent of deductions towards MFL/FTL/Buffer etc., are as per norms/GOs etc. in force and responsible for the same.

11) The status of channels/surplus course shall be maintained as per the original standards and should not be disturbed.

12) Same inlet and oulet points of stream shall be maintained.

13) The Executive Engineer is requested to make proper necessary drainage arrangements as per the site conditions to ensure free flow of catchment water without any interruption, it is instructed to ensure the same in such a way that it will not affect the nala course at the entry and exit from the applicant's land without affecting the adjacent lands duly following the irrigation standards.

14) The Executive Engineer, Irrigation Division No.1, Sangareddy shall ensure that there are no other water bodies apart from the above mentioned affecting the applicant's land.

15) The Executive Engineer, Irrigation Division No.1, Sangareddy id requested to verify the Sy.No. as per Petitioner request and location sketch map.

16) Earlier directions/instructions of HMDA if any, on these Sy.No.100/P & 101/P and adjacent survey numbers shall be strictly followed and any deviations to the above, applicant will be personally held responsible for legal and all other issues.

17) This Clarification issued on water bodies only based on the recommendation of the Revenue and Irrigation authorities and this clarification will not confirm any right of ownership on the subject property.

18) There should not be any legal issues in the above Sy.No.100/P & 101/P situated at Pashamylaram (V), Patancheru (M), Sangareddy district.

19) This Clarification issued is subject to the outcome of the NGT or other cases, HMDA final FTL notification and also orders issued if any from time to time.

20) The Executive Engineer is instructed to ensure joint inspection before and after establishment of the real estate venture to ensure that all rules have compiled with and demarcate the natural sources like water bodies, natural streams, nakshabata, kachabata and any other sources identified for public purpose as per the instructions of Engineer- in-chief (General), Letter No. ENC(G)/SE(P&M)/DCE(KB)/OT4/AE9/VR No.107 Dt: 25.10.2023.

21) The violation of any condition laid above, will instantly tend for cancellation of above permission without any prior intimation or notice.

The same was intimated to the applicant to submit Notarized Undertaking on Rs.100/- vide reference 7th cited and in turn the applicant has submitted the Notorized undertaking with above terms and conditionon Rs100/- non-Judicial stamp paper vide reference 8th cited.

Hence, it is informed that, the balance extent of land Ac 06-32Gts in Sy.No.100/P and 101/P situated at Pashamylaram (V), Patancheru (M),Sangareddy District is not affected by any water body/Channel and it is free from the water body as per the norms stipulated in G.O Ms.No.168 of Dt: 07.04.2012 of MA & UD Department.

Yours faithfully
Sd/- B.Yesaiah, Dt:29-10-2024
Superintending Engineer, I & CADD,
Irrigation Circle, Sangareddy.

Copy submitted to

1) Copy submitted to the District Collector, Sangareddy District for favour of information.
2) Copy submitted to the Chief Engineer, Irrigation, Sangareddy for favour of information along with a copy of applicant's notorized undertaking of Rs.100 /- NJSP.
3) Copy to the Executive Engineer, Irrigation Division No.1, Sangareddy, along with a copy of applicants notorized undertaking on Rs.100 /- NJSP and copy of 6th reference for information and he is requested to take further necessary action in the matter and shall regularly monitor and ensure that no violation of the applicant take place.
4) Copy to the applicant M/s.Shalimar Roller Flour Mill, C/o. Ritesh Kumar Jain, H.No.8-2-293/82/A/575, Plot No.575, Road No.32, Jubilee Hills, Hyderabad-500033by registered post with Ack. due.

S/c

29/10/2024
Superintending Engineer, I & CADD,
Irrigation Circle, Sangareddy.